

administrator. The court also incorporates by reference all findings and orders set forth in the Proposed Order submitted on April 17, 2026.

The final approval hearing is scheduled for **January 5, 2027 at 8:30 a.m. in Department 32**. The motion for final approval shall be filed and served in accordance with Code of Civil Procedure section 1005(b).

**13. S-CV-0054481 Phillips, Torah v. Dupont, Andrew**

Petition for Approval of Compromise of Claim of Proceeds of Judgment for Minor

The petition for approval of minor's compromise claim is granted. After careful consideration of the petition and attachments, the court finds the settlement is in the best interest of the minor. (Prob. Code, § 3500; Code Civ. Proc., § 372; *Pearson v. Superior Court* (2012) 202 Cal.App.4th 1333, 1337-38.)

**14. S-CV-0055110 Taylor, Alexandria v. K-Love Inc.**

Moving party is advised the notice of motion must include notice of the court's tentative ruling procedures. (Local Rule 20.2.3(C).)

Demurrer to First Amended Complaint

*Judicial Notice*

Defendants' request judicial notice of the following in support of the demurrer:

1. Plaintiff's original complaint filed on April 23, 2025, which is attached as Exhibit A.
2. The amended and restated articles of incorporation of Educational Media Foundation, establishing itself and K-Love as religious corporations not organized for the private gain of any person, which is on file with California Secretary of State and is attached as Exhibit B.

Defendants' request for judicial notice is granted.

*Request for Statement of Decision*

Defendants' request for a statement of decision is denied. A ruling on a demurrer is not a trial of a question of fact. (See Code Civ. Proc. § 632.) Nor does the court's ruling constitute an order or judgment in a matter involving a petition to compel arbitration. (See Code Civ. Proc. § 1291.)

### *Ruling on Motion*

Defendants demur to each cause of action alleged in plaintiff's first amended complaint (FAC). Plaintiff opposes the motion.

A party may demur where the pleading does not state facts sufficient to constitute a cause of action. (Code Civ. Proc., § 430.10 (e).) A demurrer tests the legal sufficiency of the pleadings, not the truth of the allegations or the accuracy of the described conduct. (*Bader v. Anderson* (2009) 179 Cal.App.4th 775, 787.) The allegations in the pleadings are deemed true no matter how improbable they may seem. (*Del E. Webb Corp. v. Structural Materials Co.* (1981) 123 Cal.App.3d 593, 604.) However, the court does not assume the truth of contentions, deductions, or conclusions of facts or law. (*Evans v. City of Berkeley* (2006) 38 Cal.4th 1, 6.) The court may only refer to matters outside the pleading that are subject to judicial notice. (*Rea v. Blue Shield of California* (2014) 226 Cal.App.4th 1209, 1223.)

Preliminarily, defendants invoke the sham pleading doctrine and ask the court to consider an allegation in plaintiff's original complaint that was deleted in the first amended complaint, that defendant K-LOVE is "the world's largest Christian broadcasting network." (See defendants' request for judicial notice, Exh. A at ¶ 19; *see also Hendy v. Losse* (1991) 54 Cal.3d 723, 742-43.) Plaintiff's opposition does not address this argument, nor did plaintiff object to defendants' request for judicial notice. The court agrees the allegation may be considered for the purpose of analyzing the present demurrer.

### *FEHA Claims*

Plaintiff's second through fourth causes of action allege gender and race discrimination, retaliation, and failure to prevent discrimination or retaliation, under the Fair Employment and Housing Act (FEHA). FEHA prohibits discrimination and retaliation by "employers." (Govt. Code §§ 12900, et seq.) Under FEHA, a religious association or corporation not organized for private profit is not an "employer". (Govt. Code § 12926(d); *see also* Code Regs. tit. 2, § 11008(d)(5).) These words are to be interpreted broadly to encompass "any entity with colorable religious motivation and substantial bona fide religious affiliations." (*Kelly v. Methodist Hosp. of So. Cal.* (2000) 22 Cal.4th 1108, 1125.) The exemption is not conditioned on the nature of the employee's job, but rather the nature of the entity that employs him or her. (*Id.* at 1116.)

This court sustained defendants' demurrer to plaintiff's complaint, granting plaintiff leave to file an amended complaint. Plaintiff has failed to cure the deficiencies in her first amended complaint as to the second through fourth causes of action and does not identify any additional allegations which could cure the deficiencies. The demurrer is sustained without leave to amend as to the second through fourth causes of action.

### *California Equal Pay Act*

Plaintiff's first cause of action alleges violation of the California Equal Pay Act. Defendants argue the ministerial exception bars this claim, relying on *Markel v. Union of Orthodox* (2024) 124 F.4th 796, *Our Lady of Guadalupe School v. Morrissey-Berru* (2020) 140 S.Ct. 2049, and *Spencer v. World Vision* (9th Cir. 2011) (per curiam) 633 F.3d 723. The court notes that each of the foregoing cases involved summary judgment motions, and the court's consideration of facts and evidence in order to determine if the defendants were "religious institutions" and if the plaintiffs were "ministers" under the ministerial exception. For the purpose of ruling on a demurrer, the court may only consider the allegations of the pleading and matters subject to judicial notice. It may not consider factual assertions made in the moving papers, or in declarations of the parties, which are outside of the four corners of the FAC.

While the ministerial exception may be raised on demurrer, it is only appropriately resolved at the pleading stage if the applicability of the defense is clear from the face of the complaint or from judicially noticeable facts. (*Gunn v. Mariners Church, Inc.* (2008) 167 Cal.App.4th 206, 221-22.) The ministerial exception does not apply simply because an employer is religious in nature. The relevant inquiry is whether the employee performed important religious functions. (*Our Lady of Guadalupe, supra*, 591 U.S. at 753-54.)

Here, application of the ministerial exception is not apparent from the face of the FAC and the judicially noticed facts. The demurrer is overruled as to the first cause of action.

### *Wrongful Termination in Violation of Public Policy*

Plaintiff's fifth cause of action alleges wrongful termination in violation of public policy. A claim for wrongful termination is established where an employee is terminated for reasons that violate fundamental public policies embodied in statute, including those prohibiting discrimination and retaliation. In light of the court's ruling overruling the demurrer as to the first cause of action for violation of the Equal Pay Act, plaintiff's claim for wrongful termination in violation of public policy is likewise adequately stated.

The demurrer is overruled as to the fifth cause of action.

Defendants shall file an answer to plaintiff's first amended complaint on or before **July 10, 2026**.

### Motion to Stay and Protective Order

Defendants' motion to stay all discovery pending the court's ruling on the demurrer is denied as moot.